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Case Number: 25AVCV00212 Hearing Date: August 28, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

BRITTNEY L. MANDUJANO; and ALBERT JAY ALCALA,

Plaintiffs,

v.

GENERAL MOTORS, LLC; and DOES 1 through 10, inclusive,

Defendants.

Case Number 25AVCV00212

[TENTATIVE]

RULING ON MOTION

Date of Hearing: August 28, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a Song-Beverly action. Defendant moves for summary judgment, or in the alternative, summary adjudication.

On February 14, 2025, Plaintiffs Brittney L. Mandujano (Mandujano) and Albert Jay Alcala (Alcala) (together Plaintiffs) filed a complaint against Defendant General Motors, LLC (Defendant), asserting five causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5, and (5) fraudulent inducement – concealment.

Plaintiffs allege that on December 15, 2018, they entered into a warranty contract with Defendant regarding a 2019 Chevrolet Colorado, which provided various warranties, including a bumper-to-bumper warranty, powertrain warranty, and emission warranty. (Compl., ¶¶ 6-7.) Plaintiffs assert that defects and nonconformities to warranty manifested themselves within the applicable express warranty period, including for engine, transmission, and electrical defects, among others, and that Defendant had a duty to offer repurchase or replacement at the time it failed to conform the vehicle to warranty after a reasonable number of repair attempts but failed to do so in violation of the Song Beverly Consumer Warranty Act (Song-Beverly Act). (Compl., ¶¶ 11-15.)

On May 13, 2025, Defendant filed its answer to the complaint.

On May 8, 2026, Defendant filed the present motion for summary judgment.

On May 14, 2026, Defendant filed a motion for judgment on the pleadings.

On July 13, 2026, Defendant filed an ex parte application to continue the trial or alternatively for leave to have Defendant's motion for summary judgment heard within 30 days of the trial date.

On July 15, 2026, the Court denied Defendant's ex parte application, but on its own motion advanced the hearing date for the motion for summary judgment to August 28, 2026.

On August 19, 2026, the Court inquired Plaintiff's counsel about filing an opposition to the motion for summary judgment.

On August 25, 2026, Plaintiffs filed an opposition to the motion for summary judgment and a declaration requesting the Court consider the untimely filing.

No reply has been filed.

II. Preliminary Procedural Issues

Timeliness of Plaintiff's Opposition – An opposition to a motion for summary judgment must be served and filed on or before the 20th day preceding the noticed or continued hearing date. (Code Civ. Proc., § 437c, subd. (b)(2).) Plaintiffs' opposition was due no later than August 7, 2026, but was not filed until August 25, 2026 three days before the hearing on the motion.

Plaintiffs' counsel Gregory Yu of Strategic Legal Practices submits a declaration requesting that the Court consider the untimely filed opposition on the grounds that counsel's failure to timely file the opposition was due to mistake, inadvertence, surprise, or excusable neglect within the meaning of section 473(b), specifically the effects of staffing changes within

counsel's firm, and that the delay is not attributable to Plaintiff in any way. (Yu Decl., ¶ 3.) Counsel also avers that under *Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, Defendant will not be prejudiced by the delay in filing and that Plaintiffs will be severely prejudiced because they will be deprived of a hearing of their claims on the merits, raising due process concerns under the pro-consumer, remedial Song-Beverly Act. (Compl., ¶¶ 4-7.)

The Court notes that a Notice of Change of Handling Attorney was filed by Plaintiffs on June 3, 2026, shortly after Defendant filed the present motion for summary judgment and before the Court advanced the date of hearing. The Notice lists Larry Chae as new handling attorney, and Mr. Chae is still currently listed as the handling attorney on this case and all papers filed in relation to this motion. Code of Civil Procedure section 473, subdivision (b) permits the court to grant relief upon just terms from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect and is not applicable here. *Minick* is similarly irrelevant, as it deals with Section 473.

However, due to the nature of the motion and the Court's unwillingness to continue the hearing on the motion to a date after trial has commenced, the Court admonishes Plaintiffs' counsel for their untimely filing and disregard of deadlines but will consider the opposition.

III. Request for Judicial Notice

Defendant's Request for Judicial Notice – Defendant requests judicial notice be taken of a list of all manufacturers that have elected to opt-in to Code of Civil Procedure sections 871.20, et seq. as maintained on the California Department of Consumer Affairs' government website as of November 10, 2025, attached as Exhibit 10 to the Declaration of Kristen J. Allison.

Defendant's request is GRANTED pursuant to Evidence Code sections 452, subdivisions (c) and (h), and 453.

IV. Legal Standard

Standard for Motion for Summary Judgment – Summary judgment is proper "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc., §437c, subd. (c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (*Id.* at §437c, subd. (p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option, he or she must present evidence "and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence." (*Aguilar*, supra, 25 Cal.4th at 865-66.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (See Code Civ. Proc. § 437c, subd. (p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (*D'Amico v. Board of Medical Examiners* (1974) 11 Cal.3d 1, 21.)

The court must grant a motion for summary judgment if, after all admissible evidence is considered, there is no triable issue as to any material fact. (See Code Civ. Proc. § 437c, subd. (c).) The court has no discretion to deny a summary judgment motion where the moving party has met their burden, the opposing party has failed to establish any triable issue of material fact exists, and the moving party is thus entitled to judgment as a matter of law. (Krasley v. Superior Court (1980) 101 Cal.App.3d 425 432.)

V. Discussion

Application – Defendant moves for summary judgment, or alternatively, summary adjudication as to all five causes of action asserted against it in Plaintiffs' complaint pursuant to Code of Civil Procedure section 437c and California Rules of Court rule 3.1350. (Motion, p. 1:2-7.) Defendant moves for summary judgment or adjudication on the following issues: (1) the first, second, and third causes of action are time-barred by the statute of repose, (2) the first, second, and third causes of action are time-barred by the statute of limitations, (3) the fourth cause of action is barred by the statute of limitations, and (4) the fifth cause of action is barred by the statute of limitations. (Motion, p. 1:9-18.)

The operative complaint alleges the following facts relevant to this motion:

On December 15, 2018, Plaintiffs entered into a warranty contract with Defendant regarding a 2019 Chevrolet Colorado, which provided various warranties. (Compl., ¶¶ 6-7.) Defendants provided Plaintiff with New Vehicle Limited Warranties, including a bumper-to-bumper warranty with coverage for the first 3 years or 36,000 miles, whichever comes first, and a powertrain warranty with coverage for the first 5 years or 60,000 miles, whichever comes first. (Compl., Ex. A, p. 2.)

Plaintiffs assert that to the extent there are any statutes of limitation applicable to their claims, the running of the limitation periods has been tolled by equitable tolling, the discovery rule, equitable estoppel, the repair rule, and class action tolling. (Compl., ¶ 23.) Plaintiffs discovered Defendant's wrongful conduct alleged shortly before the filing of the complaint, as the vehicle continued to exhibit symptoms of defects following Defendant's unsuccessful attempts to repair them. (Compl., ¶ 24.) Plaintiffs are seeking, in pertinent part, restitution. (Compl., p. 11, Prayer for Relief, ¶ b.)

a. First, Second, and Third Causes of Action – Statutes of Repose and Limitations

Defendant first argues that the first, second, and third causes of action for violation of Code of Civil Procedure section 1793.2, subdivisions (a)(3), (b), and (d) are time-barred by the statute of repose found in Section 871.21, as the statute of repose expired on December 15, 2024. (Motion, p. 3:8-12.) Defendant also argues these causes of action are time-barred by the statute of limitations found in Section 871.21, which runs from one year after expiration of the applicable warranty, and contends that the statute of limitations expired on December 15, 2024, making the complaint untimely. (Motion, p. 3:8-12.) The facts and statutory framework for both arguments significantly overlap, and the Court will consider them together.

Code of Civil Procedure section 871.21, subdivision (a) establishes a one year statute of limitations and mandates that "[a]n action covered by Section 871.21 shall be commenced within one year after the expiration of the applicable express warranty period." Section 871.21 also establishes a statute of repose, which states that notwithstanding the one year statute of limitations, "an action covered by Section 871.20 shall not be brought later than six years after the date of the original delivery of the motor vehicle." (Code Civ. Proc., § 871.21, subd. (b).) Section 871.21 became effective on January 1, 2025, approximately one and a half months prior to the filing of Plaintiffs' complaint.

Actions covered by Section 871.20 include actions "brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express

warranty.” (Code Civ. Proc. § 871.20, subd. (a).) This six year repose period is tolled in only three circumstances: (1) as provided by section 1793.22, subdivision (c), (2) when the vehicle is out of service for repair of any nonconformity, and (3) for up to 60 days after plaintiff provides a pre-suit notice to the manufacturer. (Code Civ. Proc., § 871.21, subd. (c).)

Defendant bears the initial burden of making a prima facie showing that no triable issue of material fact exists supported by competent evidence.

i. Defendant's Burden

1. Statute of Repose

As to the statute of repose, Defendant argues Plaintiff was required to bring the motion prior to December 15, 2024, which is the date on which the six-year statute of repose expired, and that Plaintiff has insufficient evidence to support the necessary two months' worth of tolling required to render the action timely under any of the three avenues for tolling set forth in Section 871.21. (Motion, p. 8:1-7.) Specifically, Defendant notes that Plaintiffs only have evidence to support tolling of the Song-Beverly claims for a period of five days while the car was out of service for warranty-related repairs. (Motion, p. 9:8-10.)

The undisputed material facts relevant to this issue are as follows[1]:

(1) On December 15, 2018, Plaintiffs purchased and took possession of the subject vehicle, a 2019 Chevrolet Colorado from Rydell Automotive Group in Northridge, California (Rydell), and Plaintiff Mandujano, the primary driver and party responsible for all repair visits, purchased the car with the help of her father, Plaintiff Alcala, whose sole role was as co-signor on the vehicle and who had no firsthand, independent personal knowledge of any warranty or maintenance repair visits or concerns with the vehicle (Plaintiff's Separate Statement of Disputed (PSUMF), ¶¶ 1, 10);

(2) On July 2, 2019, Mandujano presented the vehicle to Rydell for an oil leak, which was a warranty repair, and the vehicle was out of service for one day (PSUMF, ¶ 3);

(3) On January 8, 2020, Mandujano presented the vehicle to Rydell for engine sputtering issues, which was a warranty repair, and the vehicle was out of service for two days (PSUMF, ¶ 4);

(4) On June 2, 2020, Mandujano presented the vehicle to Rydell due to the 'Check Engine' light being on, which was a warranty repair, and the vehicle was out of service for two days (PSUMF, ¶ 5);

(5) Mandujano presented the vehicle to Rydell on four other identified occasions and the repair orders do not reflect concerns regarding the vehicle's transmission or electrical components, but it is disputed whether these visits were warranty-related (PSUMF, ¶ 6);

(6) Defendant opted into the legal framework set forth in Code of Civil Procedure section 871.20 et seq. on April 23, 2025 (PSUMF, ¶ 9); and

(7) Throughout discovery, Plaintiffs did not produce the sales contract, warranty repair orders, maintenance-only repair orders, or documentary evidence showing a pre-suit repurchase request was made, and produced initial disclosures pursuant to Section 871.26 of an insurance card, an insurance payout, a CHP notecard, and photographs of a vehicle part (PSUMF, ¶¶ 7-8.)

Defendant contends that the vehicle was out of service by reason of repair for alleged warranty nonconformities for a total period of five days, for the three undisputed warranty repair visits on July 2, 2019, January 8, 2020, and June 2, 2020. (Motion, p. 4:12-16; Defendant's Separate Statement of Undisputed Material Facts (DSUMF), ¶¶ 3-6.) Defendant argues that the four other occasions on which Mandujano brought the vehicle to an authorized repair facility constituted maintenance-only visits which were unrelated to warranty, including on (1) January 2, 2019, for which the vehicle was out of service for one day, (2) February 12, 2019, for which the vehicle was out of service for one day, (3) April 19, 2019, for which the vehicle was out of service for one day, and (4) June 4, 2020, for which the vehicle was out of service for one day. (Motion, p. 4:26-5:5; DSUMF, ¶ 6.) These visits cumulatively resulted in the vehicle being out of service for four days for non-warranty related repair. (PSUMF, ¶ 6.)

Defendant provides a copy of the Retail Installment Sale Contract between Plaintiffs and Rydell, which establishes Alcala as buyer, Mandujano as co-buyer, and the purchase date as December 15, 2018. (Allison Decl., Ex. 2.) Defendant also provides the repair records for the vehicle from Rydell, which establish the following dates of visits and reason for presentation of the vehicle:

1. July 2, 2019 – "Customer states oil leak from the oil pan gasket area" – out of service for one day, vehicle returned July 2, 2019 (Allison Decl., Ex. 3);
2. January 8, 2020 – "Customer states the engine sputters when starting and or driving" – out of service for two days, vehicle returned January 9, 2020 (Allison Decl., Ex. 4);
3. June 2, 2020 – "Customer states check engine light on" – out of service for two days, vehicle returned June 3, 2020 (Allison Decl., Ex. 5).

The detailed repair orders for the four dates Defendant contends were maintenance visits unrelated to warranty are not provided, but evidence of the visits and basic information regarding the dates of service are included, evidencing that Plaintiff did bring the vehicle in. (Allison Decl., Ex. 11.) Defendant notes that Plaintiffs did not testify to or provide in their initial disclosures any information or facts to support tolling under Section 871.21, subdivisions (c)(1) for tolling under Civil Code section 1793.22 or (c)(2) for the time period after a pre-suit notice is provided to the manufacturer. (Motion, p. 8:24-9:10; Allison Decl., Ex. 6-9.)

Here, Defendant has met its burden of establishing that there is no triable issue of material fact as to whether the statute of repose time-bars Plaintiff's claims.

It is undisputed that Defendant opted in to the framework of Section 871.20 under Section 871.29 on April 23, 2025 and that Plaintiff is seeking rescission, and therefore, Section 871.21's statute of repose applies here. It is also established that the warranties provided to Plaintiff were provided on December 15, 2018, with the longest being the powertrain warranty expiring at 5 years or 60,000 miles, whichever occurs first. Five years had elapsed prior to Plaintiff's filing of the operative complaint on February 15, 2025, which was filed after Section 871.21 took effect. Therefore, Defendant has established with competent evidence that the statute of repose expired on December 15, 2024 unless tolling applies.

Defendant's unrefuted evidence establishes that minimal tolling applies to Plaintiff's causes of action. Tolling of the statute of repose is only permitted (1) as provided by section 1793.22, subdivision (c), (2) when the vehicle is out of service for repair of any nonconformity, and (3) for up to 60 days after plaintiff provides a pre-suit notice to the manufacturer. (Code Civ. Proc., § 871.21, subd. (c).) Here, Defendant has established that Plaintiff does not plead or assert that any third-party dispute resolution process related to this matter to bring it under the purview of tolling provided by section 1793.22, subdivision (c), and that Plaintiff has not provided or testified in deposition to any pre-suit notice provided to Defendant that would permit tolling up to 60 days, the nonexistence of which is undisputed by Plaintiffs.

As for the third grounds for tolling, which applies to the time when the vehicle is out of service for repair of any nonconformity to warranty, Defendant has met its burden of establishing that tolling applies for at least five days, and at most nine days.

Here, Defendant has provided warranty repair orders for three dates, totaling five days for which the vehicle was out of service. Defendant does not provide the repair orders for the other four dates for which the vehicle was out of service for maintenance-related repairs, giving rise to a triable issue as to whether these service visits were related to warranty repairs or maintenance-only non-warranty repairs. Notwithstanding this lapse in documentation, it is undisputed that the total time the vehicle was down for service for all four of these visits combined is four days, and Plaintiffs' discovery production and deposition testimonies do not provide any additional dates on which the vehicle was presented or serviced. Therefore, Defendant has established that tolling applies for at least five days, at most nine days, from December 15, 2024.

Construing inferences in Plaintiffs' favor and taking a nine day tolling period as correct, Plaintiffs still only had until December 24, 2024 to file suit to avoid the statute of repose. As Plaintiffs did not file their complaint until February 2025, Defendant has met its burden of establishing that Plaintiffs' first, second, and third causes of action are barred by the six year statute of repose.

2. Statute of Limitations

As to the statute of limitations, Defendant argues that the limitations period expired on December 15, 2024 pursuant to Section 871.21, subdivision (a), citing the two applicable warranty periods provided regarding the vehicle, evidenced by Exhibit A of Plaintiffs' complaint. (Motion, p. 8:10-17.) Defendant argues that under the longest applicable warranty, the powertrain warranty providing coverage for the first five years or 60,000 miles, whichever comes first, the statute of limitations ran only one year after the warranty expired on December 15, 2023, five years after the warranty was issued. (Motion, p. 8:18-20.)

For the reasons stated above, Defendant has met its burden of establishing that the one year after expiration of warranty statute of limitations time-bars Plaintiffs' claims. As discussed, the warranty provided in Plaintiffs' complaint provides two warranties: (1) a bumper-to-bumper warranty, with coverage for the first 3 years or 36,000 miles, whichever comes first, and (2) a powertrain warranty, with coverage for the first 5 years or 60,000 miles, whichever comes first. (Compl., Ex. A, p. 2.) Defendant has provided unrefuted evidence that the warranty was issued on December 15, 2018, and thus, the longest of the applicable warranties offered coverage for five years at most. The five year warranty coverage therefore expired on December 15, 2023. Plaintiffs had one year from this date to bring suit and failed to do so. As discussed, minimal tolling applies under Section 871.21, subdivision (c), rendering the deadline to file the present action December 24, 2024 at the latest.

Therefore, Defendant has met its initial burden of establishing that Plaintiffs' claims are time-barred by both the statute of limitations and the statute of repose in Section 871.21. The burden shifts to Plaintiffs to raise a triable issue of material fact.

ii. Plaintiffs' Burden

Once the moving defendant has discharged its burden as to a particular cause of action, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (See Code Civ. Proc. § 437c, subd. (p)(2).) As a preliminary matter, the Court notes that Plaintiffs have provided no evidence in support of their opposition to Defendant's motion for summary judgment. Plaintiffs do, however, raise legal arguments. The Court will address these arguments in turn.

Plaintiffs argue that Defendant is unable to invoke Section 871.21's statutes of limitations and repose because Section 871.29, under which Defendant opted in to the statutory framework, did not become effective until April 2, 2025, and all actions commenced prior to April 2, 2025 are unaffected by Section 871.21's statutes. (Opp., p. 2:10-25.) Plaintiffs also argue that statutes are not to be applied retroactively unless the statute expressly states otherwise or the Legislature specifically indicated that the statute is to be applied retroactively, and because Section 871.29 does not contain express language of retroactivity, Section 871.29's opt-in procedures only apply to actions commenced after April 2, 2025. (Opp., p. 18-25.) Plaintiffs further argue that retroactive application of the statutes of limitations and repose would shorten the length of the statute of limitations and operate to cut off Plaintiffs' existing remedy in violation of their constitutional due process rights. (Opp., p. 4:4-20.)

Plaintiffs' arguments fail for a number of reasons. First, Code of Civil Procedure section 871.21 became effective on January 1, 2025, rendering it operative at the time Plaintiffs filed their original complaint. Second, Code of Civil Procedure section 871.30, subdivision (a) states:

"Within 30 days of the effective date of the act adding this section [i.e., by May 1, 2025], a manufacturer may elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs."

(Emphasis added.) Code of Civil Procedure section 871.30, subdivision (a) expressly permits a manufacturer to elect to be governed by Chapter 12 for all actions described in section 871.20(a) "with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs." (See Cal. Code Civ. Proc. § 871.30, subd. (a).) The opt-in provision was not in effect at the time of this filing; however, alternatively, after the opt-in provision came into effect, once Defendant opted-in pursuant section Cal. Code Civ. Proc. § 871.29, the Subject Vehicle would be subject to these provisions. (Cal. Code Civ. Proc. § 871.30.)

It is undisputed that Defendant opted into these new procedures after Plaintiffs filed their complaint and before May 1, 2025. As the statute expressly applies to sales of motor vehicles in years prior to 2025, the Legislature provided that the statute would apply retroactively. The Court also notes that the enactment of AB1755 was not a surprise. Plaintiffs had from September 2024 to January 1, 2025 to file their claim as to a vehicle purchased over six years before the effective date of the new statutory scheme and failed to do so. Therefore, the Court will apply Section 871.21 in the manner intended by the Legislature, i.e., Section 871.21 is applicable to this case and was effective at the time the complaint was filed.

Plaintiffs next argue that Section 871.20 et seq. does not apply to claims brought under Civil Code section 1793.2, subdivision (a)(3). (Opp., p. 4:23-5:8.) The Court also rejects this argument.

Cal. Code Civ. Proc. § 1793.2(a)(3) states that "[e]very manufacturer of consumer goods sold state and for which the manufacturer has made an express warranty shall . . . [m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period." (Civ. Code, § 1793.2, subd. (a)(3).) Enforcement of this section occurs in Cal. Civ. Code § 1794. Plaintiffs expressly allege:

Defendant GM's failure to comply with its obligations under Civil Code section 1793.2, subdivision (a)(3) was willful, in that Defendant GM knew of its obligation to provide literature and replacement parts sufficient to allow its repair facilities to effect repairs during the warranty period, yet Defendant GM failed to take any action to correct its failure to comply with the law. Accordingly, Plaintiffs are entitled to a civil penalty of two times Plaintiffs' actual damages, pursuant to Civil Code section 1794(c).

(Compl., ¶ 39.)

Claims for the enforcement of warranties under section 1794 explicitly fall within the covered claims defined by Code Civ. Proc., § 871.20. (Code Civ. Proc. § 871.20(a).) Thus, Plaintiffs' cause of action for violation of subdivision (a)(3) of Cal. Civ. Code § 1793.2 falls within the scope of section 871.21 and must have been "commenced within one year after the expiration of the applicable express warranty." (Cal. Code Civ. Proc. § 871.21(a).)

The Court therefore finds that all three causes of action arising under Civil Code section 1793.2, subdivisions (a)(3), (b), and (d) expressly fall under Code of Civil Procedure section 871.20, and thus, are subject to the statutes of limitations and repose set forth in Section 871.21, subdivisions (a) and (b). Thus, the action must have been brought within one year after the expiration of the applicable express warranty, and shall not have been brought later than six years after the date of original delivery of the Vehicle, unless Plaintiff can prove tolling applies to both the statute of repose and the statute of limitation for a period of 62 days. (Code Civ. Proc., § 871.21, subd. (a)-(b).) They have failed to do so.

Plaintiffs argue that Section 871.21's statutes of limitations and repose do not exclude other equitable tolling doctrines, as there is no express exclusivity language contained in Section 871.21. (Opp., p. 6:24-27.)

As to the statute of repose, Plaintiff's argument is a non-starter. Statutes of repose are generally not subject to equitable tolling. (MACH-1 RSMH, LLC v. Darras (2024) 103 Cal.App.5th 1288, 1302 ["statutes of repose are generally not subject to tolling"].) Plaintiffs cite no authority recognizing equitable tolling of a statute of repose, and the Court is aware of none. Code of Civil Procedure section 871.21, subdivision (b) therefore bars Plaintiffs' claims regardless of any equitable doctrine Plaintiffs invoke.

As to the statute of limitations, the Court finds that Code of Civil Procedure section 871.21, subdivision (c) does not necessarily preclude equitable tolling of the Code of Civil Procedure section 871.21, subdivision (a) statute of limitations under the appropriate circumstances, as the conditions of Code of Civil Procedure section 871.21, subdivision (c) are not exclusive. However, to invoke equitable tolling of the statute of limitations, Plaintiff must establish (1) timely notice to defendant; (2) lack of prejudice; and (3) Plaintiff's reasonable and good faith conduct. (McDonald v. Antelope Valley Community College Dist. (2008) 45 Cal.4th 88, 102.) Plaintiffs have provided absolutely no evidence that any equitable tolling applies to the case at hand. Plaintiffs' complaint cites the tolling rule for class actions but makes no showing as to any pending class actions that would affect the instant claims. Plaintiff alleges that Defendant concealed known defects, but makes no showing of concealment or discovery thereof.

Accordingly, Plaintiffs have not met their burden of establishing a triable issue of material fact as to whether the first, second, and third causes of action are time-barred.

b. Fourth Cause of Action – Statute of Limitations

Defendant next argues that the fourth cause of action for breach of the implied warranty of merchantability is time-barred by the applicable four year statute of limitations, which expired on December 15, 2022. (Motion, p. 3:20-23.)

i. Defendant's Burden

A cause of action for breach of implied warranty of merchantability is generally subject to a four year statute of limitations, and a breach of warranty occurs when tender of delivery is made except where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance, in which case the cause of action accrues when the breach is or should have been discovered. (Comm. Code, § 2725, subd. (1)-(2); Montoya v. Ford Motor Co. (2020) 46 Cal.App5th 493, 495 ["The statute of limitations for breaches of the implied warranty of merchantability is four years."].)

Implied breaches of warranty have long been held not to extend to future performance of the goods purchased. (Motion, p. 10:2-6; Cardinal Health 301, Inc. v. Tyco Electronics Corp. (2008) 169 Cal.App.4th 116, 134.) When California enacted Commercial Code section 2725 and adopted the Uniform Commercial Code, it "expressed the clear intent to follow the uniform rule which established tender of delivery as the accrual date [for breach of implied warranty claims], unless the plaintiff shows the warranty 'explicitly extends to future performance. [Citation.]'" (Id. at 132 .) Courts have consistently held that while the Song-Beverly Act "creates a limited, prospective duration for the implied warranty of merchantability; it does not create a deadline for discovering latent defects or for giving notice to the seller," and therefore, the delayed discovery rule may apply. (Mexia v. Rinker Boat Co., Inc., 174 Cal. App. 4th 1297, 1301, 1311 ["we interpret the duration provision as providing the implied warranties under the Song-Beverly Act with a limited prospective existence beyond the date of delivery."].)

Here, Defendant has met its burden of establishing that no triable issue of fact exists as to whether the fourth cause of action is time-barred.

The application of a statute of limitations is generally deemed an affirmative defense, the facts of which a defendant must prove. (*Samuels v. Mix* (1999) 22 Cal.4th 1, 10.) The delayed discovery rule and fraudulent concealment doctrine are exceptions to this requirement. (*Investors Equity Life Holding Co. v. Schmidt* (2011) 195 Cal.App.4th 1519, 1533.) Therefore, the burden of pleading and proving belated discovery of a cause of action falls on the plaintiff. (*Ibid.*) “The doctrine of fraudulent concealment of the cause of action ... has an effect similar to the statutory rule of delayed accrual” and “the same pleading and proof is required ... , i.e., the plaintiff must show (a) the substantive elements of fraud, and (b) an excuse for late discovery of the facts. [Citations.]” (*Ibid.*)

Here Defendant has met its burden to show that Plaintiffs' claims are untimely. First, the law is clear that the four year statute of limitations for breach of the implied warranty of merchantability generally accrues on the date of sale.

Second, Defendant raises an assumption that Plaintiffs do not possess evidence justifying their late filing, asserting that no evidence has been provided and producing evidence of Plaintiffs' deposition testimony and discovery production, and no evidence has been produced which would give rise to class action tolling, equitable tolling, or delayed discovery tolling. (Motion, p. 10:22-27.)

Third, Defendant provides evidence establishing Plaintiffs' knowledge of the defects in 2019 and 2020. Defendant points to Mandujano's deposition testimony, in which she states she began bringing the vehicle to Rydell within the first year of ownership when the vehicle for her electrical and transmission complaints and testified that she only brought the vehicle in for repairs. (Allison Decl., Ex. 6.) Mandujano testified, in relevant part that when she first purchased the vehicle, she drove to San Francisco, which is when she began experiencing electrical issues in early 2019 around New Years Day, roughly two weeks after purchase. (Allison Decl., Ex. 6, p. 33:11-34:4.) Mandujano further testified that any time she drove over 50 miles per hour, the steering wheel would wobble and make sounds, that she raised these issues when she took the vehicle in for maintenance and repairs, and that the issues began “early on in the purchase. First year of purchase,” before the vehicle had reached 10,000 miles. (Allison Decl., Ex. 6, p. 75:10-77:7.) Mandujano also testified that in light of the electrical and powertrain issues, she felt unsafe driving the car, that she intentionally never towed anything with the vehicle because of power issues, that she refrained from traveling far and drove minimally from point A to point B because she felt the vehicle was not safe enough to drive, and that the electrical issues in the car continuously returned. (Allison Decl., Ex. 6, p. 70:9-72:4, 73:5-21.) Finally, Mandujano testified that she did not believe Rydell or Defendant were incapable of fixing the vehicle, believed they should have fixed it when she presented the vehicle for repair, that none of the issues were ever resolved, that she worked from home for a number of months due to her fear of driving the vehicle and recurring issues, and that the issues made her feel unsafe driving the vehicle. (Allison Decl., Ex. 6, p. 77:13, 78:18-79:21, 82:21-83:3.)

Fourth, Defendant has provided evidence that Plaintiffs brought the Vehicle in for repairs at least four separate times in the first year of purchase on January 2, 2019, February 12, 2019, April 19, 2019, and July 2, 2019. (Allison Decl., Ex. 3, 11.) Plaintiff presented the vehicle for repair at least three more times on January 8, 2020, June 2, 2020, and June 4, 2020, and testifies that she raised her concerns and issues with the vehicle during the repair and maintenance appointments. (Allison Decl., Ex. 4-5, 11.)

The evidence presented is sufficient to establish that no triable issue of material fact exists as to the fourth cause of action being time-barred. Here, Plaintiffs presented the vehicle seven times within the first year and a half of ownership, cited ongoing and persistent engine and transmission issues that occurred every time the car was driven at certain speeds, Mandujano testified that she worked from home for months to avoid driving the vehicle because the issues were so persistent that she generally felt the vehicle was unsafe to operate, and Plaintiffs purportedly communicated these issues to Rydell, who failed to repair the defects.

Accordingly, Defendant has met its burden, and the burden shifts to Plaintiff to raise a triable issue of material fact as to the accrual date of this cause of action.

ii. Plaintiffs' Burden

Plaintiffs argue the fourth cause of action was tolled under the delayed discovery rule. (Opp., p. 7:21-22.)

Actions for breach of implied warranty are subject to the four year statute of limitations of Cal. U. Com. Code § 2725. (See also *Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 495.) Commercial Code § 2725 provides in part:

(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued. By the original agreement the parties may reduce the period of limitation to not less than one year but may not extend it.

(2) A cause of action accrues when the breach occurs, regardless of the aggrieved party's lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.

Plaintiff is incorrect that for a breach of implied warranty the cause of action accrues when the breach is or should have been discovered. (Opposition, at 8.) Section 2725 expressly provides otherwise (“... regardless of the aggrieved party's lack of knowledge of the breach.”) (See also *Mexia v. Rinker Boat Co.* (2009) 174 Cal.App.4th 1297, 1304 (“In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.”) And while discovery of a latent defect after the expiration of the implied warranty may give rise to an action, the four-year statute of limitations still runs from date of deliver. (*Id.*, at 1311 (calculating that plaintiff who discovered defect 13 months after purchase still had “almost three years to bring an action for breach of the implied warranty.”)

Plaintiff argued alternatively that the duration of the warranty is extended during the periods the vehicle was under repair, or that the statute is tolled for that period. The duration of the express warranty here was one year. As there was a 3-year/5-year express warranty here, the term of the implied warranty was 1-year. (Civ. Code § 1791.1(c) (The “duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty ... but in no event ... have a duration of less than 60 days nor more than one year following the sale of new consumer goods to a retail buyer.”).) There was no evidence that Plaintiff brought in the vehicle for repairs within the one-year implied warranty period, thus CACI 3212 and 3231 (cited by Plaintiff at argument) do not pertain. Furthermore, even accepting the premise of Plaintiff's argument, the evidence showed that the vehicle was in repair shops for 53 days – for a variety of repairs all not necessarily related to the claimed defect. Fifty-three days from April 14, 2020 is June 6, 2020 – still well over four years before the August 30, 2024.

Plaintiff cites *Aced v. Hobbs-Sesack Plumbing Co.* (1961) 55 Cal. 2d 573, 585 for the proposition that the breach of implied warranty can accrue when the defect is discovered, and the statute then runs from that later date. As *Mexia* noted, this rule was effectively superseded by the adoption of the Uniform Commercial Code. (*Mexia*, supra, 174 Cal.App.4th at 1309.)

But even if one accepts Plaintiffs' position that the statute of limitations for a cause of action for breach of implied warranty could be subject to the discovery rule, Plaintiffs have done nothing to rebut Defendant's evidence on this score.

Pursuant to the delayed discovery doctrine, the limitations period may be tolled until the aggrieved party suspects or should suspect that their injury is caused by wrongdoing. (*Brandon G. v. Gray* (2003) 111 Cal.App.4th 29, 35.) “A plaintiff need not be aware of the specific ‘facts’ necessary to establish the claim; that is a process contemplated by pretrial discovery... So long as a suspicion exists, it is clear that the plaintiff must go find the facts; she cannot wait for the facts to find her.” (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1111.) “[I]t is firmly established ‘that the defendant's fraud in concealing a cause of action against him tolls the applicable statute of limitations, but only for that period during which the claim is undiscovered by plaintiff or until such time as plaintiff, by the exercise of reasonable diligence, should have discovered it.’ [Citations.]” (*MGA Entertainment, Inc. v. Mattel, Inc.*, 41 Cal. App. 5th 554, 561.) “[T]he doctrine of fraudulent concealment for tolling the statute of limitation ‘does not come into play, whatever the lengths to which a defendant has gone to conceal the wrongs, if a plaintiff is on notice of a potential claim.’” (*Ibid.*)

Here, Plaintiffs generally allege they did not discover Defendant's fraudulent conduct until "shortly before the filing of the complaint" because "the Vehicle continued to exhibit symptoms of defects following GM's unsuccessful repair attempts." (Compl., ¶ 24.)

Plaintiffs fail to produce evidence justifying late discovery of Defendant's alleged breach of the implied warranty of merchantability. For example, Plaintiffs put forth no evidence as to what the repair technicians shared or withheld from Plaintiffs after each attempted repair, how it was incorrect, or how Plaintiffs relied on that information. Plaintiffs have made no showing that they could not have discovered the Vehicle's unrepairable defects earlier with reasonable diligence, and the uncontradicted evidence provided by Defendant appears to establish that Plaintiffs were aware, or should have been aware, of the facts giving rise to their warranty causes of action in 2020, after Plaintiffs presented the Vehicle numerous times for the same defects, which Plaintiffs testified were not being repaired.

Plaintiffs testified that the defects and nonconformities to the vehicle manifested within approximately one month of purchase and continued for over one and a half years, during which time Plaintiffs presented the vehicle for repairs, all attempts at which allegedly failed. Thus, the evidence presented by Defendant establishes no triable issue of material fact exists, and Plaintiffs have failed to present any evidence to toll the limitations period based on their delayed discovery of the breach of warranty.

Again, under Section 2725, the discovery rule does not apply to claims for breach of implied warranty. But even under Plaintiffs' rendition of the law they have failed to meet their burden in response.

c. Fifth Cause of Action – Fraudulent Inducement

Finally, Defendant argues that the fifth cause of action for fraudulent inducement, concealment, is time-barred by the applicable three year statute of limitations, which expired on December 15, 2021. (Motion, p. 3:24-4:1.)

i. Defendant's Burden

An action for relief on the grounds of fraud is subject to a three year statute of limitations, which begins to run when the aggrieved party discovers the facts constituting the fraud. (Code Civ. Proc., § 338, subd. (d); *Broberg v. The Guardian Life Ins. Co. of America* (2009) 171 Cal.App.4th 912, 920.)

As discussed, Defendant's unrefuted evidence establishes that the vehicle was purchased and warranties provided on December 15, 2018 and defects manifested within the first month of ownership. The vehicle was repeatedly presented for repairs and Plaintiffs raised their concerns regarding the nonconformities around four to seven times, and each time Defendant either stated there was either nothing wrong with it, or repairs attempted were unsuccessful and the issues remained or remanifested in the vehicle. Section 338 subdivision (d) establishes a three year statute of limitations, and as discussed, the burden falls on Plaintiffs to establish when they learned of facts giving rise to fraud and why they could not with reasonable diligence have discovered the fraudulent conduct sooner. Defendant has provided sufficient evidence to establish that any delayed discovery of the facts underlying this cause of action does not extend beyond June of 2020, the last date of repair, as discussed herein and evidenced by Plaintiffs' deposition testimony, the repair records, and Plaintiffs' discovery production.

Therefore, Defendant has met its burden of establishing that Plaintiffs knew, or reasonably should have known, of the facts giving rise to the fraudulent inducement-concealment cause of action on or before June 4, 2020, that the statute of limitations ran three years after that date, and that Plaintiff's fifth cause of action is time-barred. The burden shifts to Plaintiff to establish a triable issue of fact as to the date of discovery.

ii. Plaintiffs' Burden

Plaintiffs argue that Defendant inverts the applicable burden of proof in claiming that Plaintiffs do not possess evidence justifying the late filing of the complaint, and that Defendant cannot rely on Plaintiffs' lack of evidence justifying tolling. (Opp., p. 10:23-24.) Plaintiffs are incorrect.

A defendant may discharge his burden on summary judgment by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option, he or she must present evidence "and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence." (Aguilar, *supra*, 25 Cal.4th at 865-66.)

Under the latter approach, a defendant's initial evidentiary showing may 'consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action.' [Citation.] In other words, a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff's factually devoid discovery responses from which an absence of evidence may be reasonably inferred. [Citation.]

(Leyva v. Garcia (2018) 20 Cal.App.5th 1095, 1103 (emphasis added).

This is precisely what Defendant did here. Defendant provided repair records, deposition testimony of both Plaintiffs, and discovery production which contained no evidence regarding delayed discovery or other applicable tolling. Defendant further produced evidence establishing that the existence of the defects in the vehicle prior to purchase was known or should have been known by no later than June of 2020 through the repair orders and Plaintiffs' deposition testimonies. An absence of evidence may reasonably be inferred from the evidence provided by Defendant, as may a finding that Plaintiffs knew or should have known of the defect by a particular time in light of the facts and unrefuted evidence presented. The burden, therefore, is on Plaintiffs to raise a triable issue of fact as to when Defendant's wrongdoing became known to Plaintiffs.

Plaintiffs again argue that the fifth cause of action was tolled under the discovery rule, as Defendant has failed to establish that Plaintiff knew or should have known that the vehicle contained defects and could not be repaired under the warranty or reason to know any wrongdoing by Defendant. (Opp., p. 12:28-13:2.) The Court disagrees.

Defendant has provided unrefuted and uncontradicted evidence that from 2019 through mid-2020, (1) Plaintiff began experiencing electrical and transmission issues with the vehicle within one month of purchase, (2) Plaintiff presented the vehicle for repairs and none of the issues were ever resolved, (3) Plaintiff presented the vehicle approximately two to three times for each issue with the vehicle, (4) at the time the issues were presenting in the vehicle, Plaintiff was not under the belief that Defendant had fixed the issue (Allison Decl., Ex. 6, p. 82:6-19), (5) Plaintiff was not under the impression that Defendant was incapable of fixing the issue or that the issues had been resolved, (6) Plaintiff was scared and felt unsafe driving the vehicle, (7) Plaintiff stopped driving to work and worked from home for a number of months because of the vehicle issues, (8) Plaintiff avoided driving on highways due to recurrent issues when the car exceeded speeds of 50 miles per hour, (9) Plaintiff avoided towing anything with the vehicle due to power issues, and (10) Plaintiff raised her concerns multiple times without remedy.

This evidence is sufficient to establish that no triable issue of material fact exists as to whether Plaintiffs knew or with reasonable diligence should have known of the defects. Plaintiffs have provided no evidence to contradict that presented by Defendant, and no evidence that Plaintiffs did not know, and could not have known in the exercise of reasonable diligence, of the facts giving rise to their cause of action, particularly so in light of the fact that these defects manifested within one month of purchase. Plaintiffs rely in part on *Hammond v. BMW of N. Am., LLC*, 2019 WL 2912232, at *3 (C.D. Cal. June 26, 2019) to support the argument that Defendant has failed to satisfy its burden of establishing that Plaintiff believed or should have believed that the problems manifesting in the vehicle were result of a defect that could not be repaired under the vehicle's warranty. However, in *Hammond*, the plaintiff presented a vehicle twice for excessive oil consumption, and the dealer told her the level of oil consumption was normal. The court found that this was insufficient to establish that no jury could find that Plaintiff did not discover or have reason to discover the underlying defects giving rise to her causes of action. Here, Defendant has provided sufficient evidence for the Court to find that no triable issue of material fact exists, particularly because Plaintiffs have failed to provide any evidence whatsoever to support delayed discovery, and where Plaintiff herself

testified that she believed Defendant could identify, disclose, and repair the issue and failed to do so as early as 2019, and thereafter felt too unsafe to drive the vehicle in the manner for which it was intended.

Accordingly, Defendant's motion for summary judgment is GRANTED.

VI. Conclusion

Defendant General Motors, LLC's Motion for Summary Judgment is GRANTED.

[1] Plaintiffs object to some of these facts to the extent that Defendant attempts to assert them to support certain of its arguments. However, Plaintiffs do not dispute the underlying facts or statements themselves.